

returned the controlling interest to the widow and sons and ordered Mike to return \$1 billion to the business.⁶

The ruling escalated the feud to extraordinary levels. There were fistfights in court and an attempt to trick a law clerk into revealing evidence of judicial misconduct via a phony job interview.⁷

If the brothers had only defined what “take care of my family” meant, it may have saved the family a lot of grief and a fortune in legal fees.

Sometimes it’s a simple thing. The family is just asleep at the wheel when it comes to basic estate planning. They wait until it’s too late, for which they pay dearly.

PAY TWO ESTATE TAX BILLS AT ONCE?

That’s what happened to the Leverett family.

Clayton and Will Leverett come from a long line of cattlemen. Their great-great grandfather, the son of an English immigrant, moved from Virginia to Texas in the 1860s. He leased land and grazed cattle. He saved his money and bought small tracts from the people he was leasing from. He was able to put together a ranch of several thousand acres through hard work and frugal living.

The ranch was passed down from generation to generation. Then, in 1997, upon the death of Clayton and Will’s grandmother, the IRS came knocking.

The old saying goes, “Nothing’s sure except death and taxes.” And like it or not, the two go hand in hand. When a relative dies and leaves assets to you, the IRS sends its condolences in the form of a big bill: the estate tax.

The Leverett family was suddenly forced to pay 38.5 percent tax on the appraised value of the land that their ancestors had purchased and worked on for over 100 years.

They weren’t prepared. They didn’t know the value of the land. And the estate didn’t have much in the way of liquid assets to pay this debt to the IRS. So their father set up a payment plan and began working to pay it off.